

EXHIBIT N

Hearing Tr. Feb. 28, 2025, pp. 291-294

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Hearing Tr. Feb 28, 2025

1 I keep on asking -- this is multiple times. I
2 say, "Please tell me what you have," because I show up
3 with something, and he goes, "Oh, we never got that."

4 And then I have to go and spend all this time
5 litigating that he did have it like we just did for the
6 911 call, which they've had -- the defense has had since
7 January 2024.

8 THE COURT: Let's not go over old territory,
9 Mr. Rosario.

10 Your obligation, your role here, is to choose
11 whatever documents you wish to have admitted at trial.
12 That's simply it.

13 You tell them what it is. And if they say they
14 didn't receive it, then the Court will resolve the
15 issue.

16 However, I don't really want to hear about your
17 complaints about the other side. They have an ethical
18 obligation to tell you that they don't have the
19 materials.

20 Whether their predecessor law firm gave the
21 materials to them or not isn't really an issue for the
22 Court currently.

23 To the extent that they didn't receive the 911
24 call or anything else that they say they didn't have it,
25 they don't have it.

26 If they can -- I'm not going to question a
27 lawyer's remarks regarding what they have and don't
28 have.

1 They are an officer of the Court, and they are
2 supposed to conduct themselves appropriately before the
3 Court. If they are not, there are other sanctions that
4 they could suffer here.

5 So far I haven't heard or seen anything on the
6 part of the current law firm which tells me that they
7 have conducted themselves improperly.

8 I want to make that very clear. Your
9 grievances or complaints about what happened are a
10 function of the management of your case.

11 Frankly, I look at the materials that you
12 submitted. I have a very difficult time trying to
13 understand what you are trying to accomplish with your
14 submissions.

15 They are just thrust in front of the Court
16 and say, "Here, this is what I have." And then there's
17 a series of objections, and I know you're not a lawyer,
18 but there are a series of objections that the Court
19 considers, and in each case many of your objectives
20 conflict with what's done at the trial.

21 Many of the things that you want to have occur
22 are simply things that you will have to make objections
23 at trial.

24 Much of the pretrial discovery issues that
25 you've run into have simply passed now because the
26 discovery cutoff has occurred.

27 If they don't have documents, or if you submit
28 to them what you're going to seek to have admitted in

1 this case, and they say they don't have it, it's like --
2 it's required of you to send the documents over.

3 Otherwise, I won't allow them in. And it works
4 for them too. If Mr. Reyna and his firm have documents
5 that they plan to seek admission for, they should be --
6 and you don't have them, then you should ask for them.

7 But, frankly, we don't try cases by ambush.
8 That is the whole goal. So if you're at trial and
9 you're in front of a jury, the proper way of introducing
10 an item of evidence is to show the other side the item
11 or the document or the exhibit.

12 And then once they say, "Yes, we have it," then
13 you can show it to the witness. That's how it works.
14 So much of your issues about, "I never got this. I
15 never got that," or, "I'm demanding that they show me
16 this and show me that," that gets taken care of at
17 trial. Although it makes the trial much longer.

18 If you're going to exchange what exhibits you
19 have, then I would encourage you to do so. I don't want
20 to be sitting up here saying -- having to resolve
21 disputes over what you did or didn't have as a result of
22 the discovery process.

23 MR. ROSARIO: I mean, I understand what you're
24 saying. If I was in the defense's position, you know,
25 of course I could overlook my duty to preserve and Rule
26 3.4(a) of the professional conduct of making sure that I
27 have a document that is substantive to a case.

28 And if that's where we're at where he can just

1 continuously just say, "Oh, I never got anything," you
2 have to continuously prove it, there's a point that
3 after my proof of services and all the discovery -- I
4 mean, as a defense attorney I could do the same thing.

5 I could say, "Oh, yeah. Well, I never got it,
6 and you've got to keep on proving it until I get" --
7 have to spend huge amount of resources to litigate that
8 they were even given it in the first place. We're kind
9 of back to this behavior of the defense where they are
10 saying --

11 THE COURT: Mr. Rosario, let me interrupt you.

12 If you have a proof of service of an
13 interrogatory or you have a proof of service of a
14 request for production of documents or you have a proof
15 of service for a form interrogatory or some proof of
16 service that it was given to them, then they can't
17 complain they didn't get it. It's as simple as that.

18 Mr. Reyna, anything else?

19 MR. REYNA: Yes, your Honor.

20 I would like to bring to the Court's attention
21 the lack of decorum and respect that plaintiff has
22 exhibited to defense counsel throughout this litigation
23 since he became a pro per litigant.

24 And most recent in his E-mail to the Court back
25 on Sunday at 10:49 p.m. in which he refers to me as
26 "Miss" twice in the E-mail, "Ms. Alberta Reyna," by
27 misspelling my name.

28 And then also goes out of his way to insult